

STRATEGIC FRAMEWORK

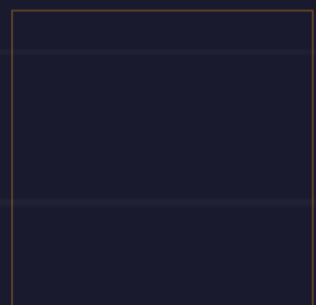
Non-MiCA Business Model Framework

Operating within the EU regulatory boundary without a CASP or MiCA license

Virtuse Wealth Management, a.s.

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1. The Critical Legal Boundary

MiCA defines **ten regulated crypto-asset services** (Article 3(16)) that require a CASP license. Virtuse must never cross into these activities. The table below maps each regulated service against Virtuse's intended operations.

MiCA Regulated Service	Can Virtuse Do This?	Boundary
Custody of crypto-assets	NO	Never hold client private keys or funds
Operate a trading platform	NO	Never match orders or provide execution venue
Exchange crypto for fiat (proprietary)	NO	Never trade against own capital
Execute orders on behalf of clients	NO	Never sign transactions for users
Portfolio management	NO	Never discretionarily manage portfolios
Transfer services on behalf of clients	NO	Never initiate transfers for users
Reception & transmission of orders	GRAY	Only if NOT "on behalf of clients"
Placing of crypto-assets	GRAY	Marketing for token issuers triggers this
Providing advice on crypto-assets	CONTEXTUAL	Personalised = regulated; general = exempt

The Three Red Lines

1. **No custody** -- Virtuse never holds private keys or funds.
2. **No execution** -- Virtuse never signs transactions or places orders.
3. **No personalised advice** -- All content is uniform, never tailored to individual circumstances.

2. Five Compliant Business Lines

2.1 Bitcoin Information & Media Platform

Legal Basis

General market information is NOT "advice" under MiCA. MiCA Article 3(16)(10) defines "advice" as *personalised recommendations to a client in respect of one or more transactions relating to crypto-assets, where the recommendation is based on an assessment of the client's personal circumstances*. Uniform content delivered to all subscribers falls outside this definition.

Virtuse's existing Terms of Service already state: *"All opinions, information, discussions, analyses, prices, advice and other information on this Website are general market reviews and do not constitute any investment advice."* This positioning is legally sound under MiCA.

What MiCA Defines as "Advice"	What Virtuse CAN Do
Personalised recommendations considering client's circumstances, objectives, risk appetite	General market commentary, price data, charts, Bitcoin news
Tailored buy/sell recommendations	Uniform research reports, market newsletters, on-chain analytics
Individual portfolio suggestions	Bitcoin education courses, video content, podcasts

Key Safeguards

- No questionnaires profiling users (income, net worth, risk tolerance)
- No "based on your profile, we recommend..." functionality
- All content identical for all subscribers at the same tier
- Clear disclaimers on every page: "For informational purposes only; not investment advice"

2.2 Referral & Affiliate Partnerships with Licensed CASPs

Legal Basis

MiCA applies to the CASP being promoted, not necessarily the referrer -- provided the referrer does not execute, custody, or advise. Pure referral links where the user completes onboarding independently on the licensed CASP's platform fall outside MiCA's scope.

Partnership Models

Model	How It Works	Revenue
Referral links	User clicks link, registers with licensed CASP, completes KYC on CASP platform	CPA (EUR 10-50 per funded account) or revenue share (20-40% of fees)
Embedded comparison widget	Show live BTC buy prices across 3-5 licensed CASPs; user selects best price	Affiliate fee from chosen CASP
"Buy Bitcoin" buttons	Deep-link to specific CASP buy pages with pre-filled amounts	Conversion-based fee

Critical Safeguards

- Virtuse must NOT handle user funds or KYC data
- User completes ALL onboarding on the CASP's platform
- CASP partner is responsible for Article 53 marketing compliance
- Virtuse discloses affiliate relationships transparently
- User must independently navigate to CASP and place orders -- no order data flows through Virtuse systems

Recommended CASP Partners

Partner	License	Why Partner	Referral Program
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Relai	MiCA CASP (AMF France)	Only Bitcoin-only MiCA CASP; 300% YoY growth; 130K+ users	Revenue share 20-30%
21bitcoin	MiCA CASP (FMA Austria)	Bitcoin-only; 100K+ users; 0.79% fees; DACH focus	CPA + rev share
Bitpanda	3 MiCA licenses (AT/DE/MT)	Strong DCA product; 3 MiCA licenses; institutional grade	20% lifetime rev share
Coinbase	MiCA CASP (CSSF Luxembourg)	Largest EU CASP; deep liquidity; trusted brand	50% of trading fees

2.3 Non-Custodial Trading Bot Infrastructure

Legal Basis

Non-custodial bot software is a tool, not a financial intermediary. ESMA guidance confirms that "fully decentralised manner without any intermediary" falls outside MiCA scope. The key determinant is who controls the private keys.

Architecture Options

Architecture	MiCA Status	How It Works
Self-hosted bot	NOT a CASP	User downloads/runs bot locally; connects own wallet; Virtuse provides strategy templates only
Cloud bot with user-controlled API keys	NOT a CASP	Bot runs on Virtuse cloud BUT user retains sole control via API key permissions (no withdrawals); non-custodial
Smart contract DCA (on-chain)	NOT a CASP	User signs transactions themselves; smart contract executes pre-programmed DCA strategy

Critical Technical Requirement

Virtuse must **never** have the ability to initiate withdrawals, sign transactions on user's behalf, or access private keys. The user must authorise every action with their own signature.

2.4 Bitcoin Wallet Integration (Non-Custodial)**Legal Basis**

MiCA Recital 83 explicitly excludes "hardware or software providers of non-custodial wallets" from its scope. Non-custodial wallet software is unregulated in the EU.

Permitted Features

Feature	Implementation
Connect wallet	Integrate with Sparrow, Electrum, BlueWallet, Phoenix (self-custody)
Portfolio tracking	Read-only balance display across connected wallets
Transaction history	On-chain data aggregation (public blockchain data)
Address labeling	User-managed labels for tax/tracking purposes
xPub import	Watch-only wallet tracking for Bitcoin addresses

What Virtuse CANNOT Do

Create wallets where Virtuse holds the private keys, offers recovery services, or has any ability to transact on user's behalf.

2.5 HNWI Media & Research Services

Legal Basis

Information sold as a product is NOT "advice" if non-personalised and not recommendation-based. MiCA applies to the activity of advising, not the sale of research publications. The critical distinction is whether content is tailored to an individual's circumstances.

Service Tiers

Service Tier	Content	Price Point	MiCA Status
Bitcoin Research Newsletter	Weekly market analysis, on-chain metrics, macro trends	EUR 29-99/month	Non-regulated media
Quarterly Bitcoin Outlook	Deep-dive PDF: price models, network analysis, institutional flows	EUR 500-2,000/report	Non-regulated research
On-chain Analytics Dashboard	Real-time data: SOPR, MVRV, NUPL, exchange flows	EUR 99-299/month	Raw data + commentary
Private Community	Community chat, market discussion, AMAs	EUR 50-200/month	Community, not advice
"Bitcoin Office Hours"	Group video calls with Q&A; user asks, Virtuse explains concepts	EUR 500-1,000/month	Education, not advice

The Critical Line

These services must be **genuinely educational and informational**. The moment Virtuse says "based on your situation, you should buy X amount of Bitcoin," it crosses into regulated "advice" territory.

Safeguards for HNWI Service

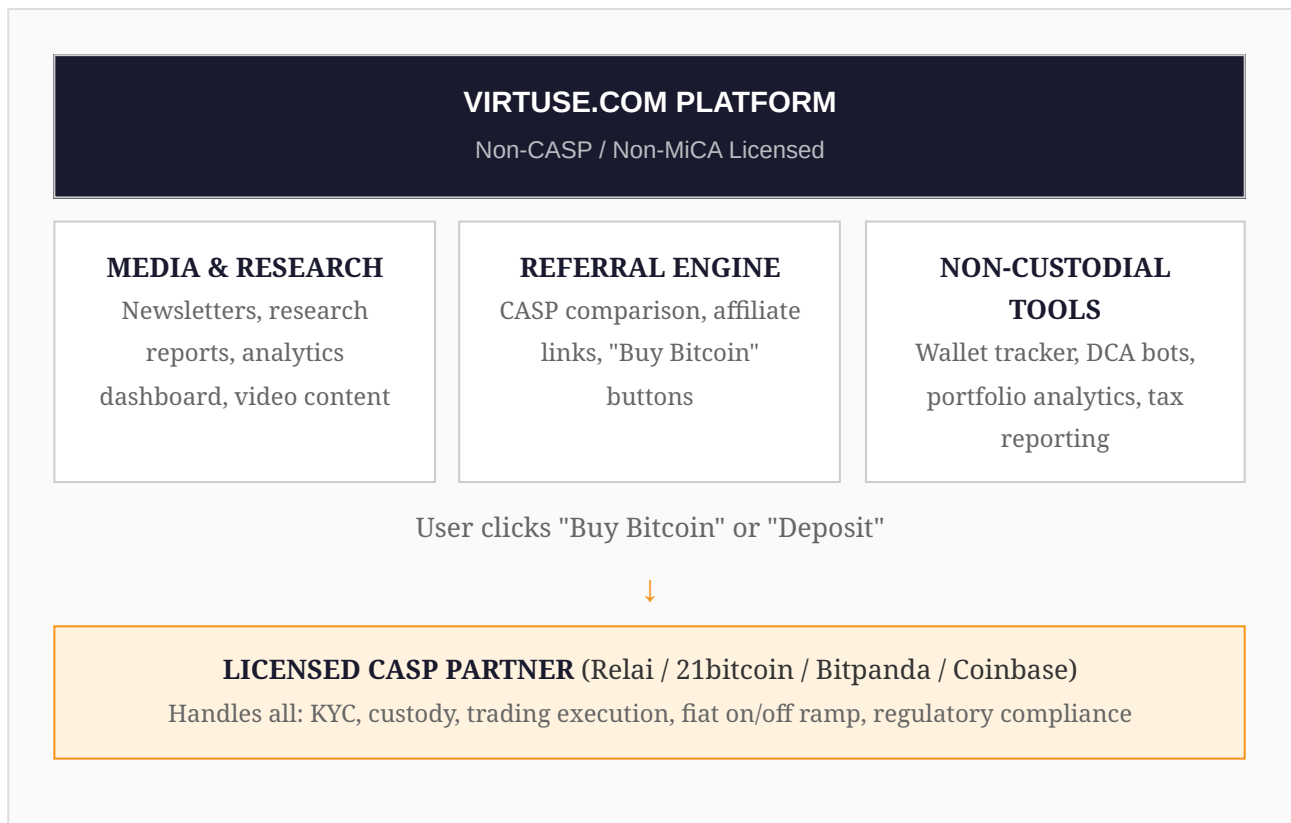
- Clear disclaimers: "For informational purposes only; not investment advice"

2. Five Compliant Business Lines

- No client profiling (income, risk tolerance, investment goals)
- No individualised portfolio recommendations
- Content is the same for all subscribers at a given tier
- Group sessions only (no one-on-one "advisory" calls)

3. Platform Architecture

The diagram below illustrates how virtuse.com is structured as a three-layer platform. All regulated activities (custody, execution, KYC) are handled exclusively by licensed CASP partners.



Key principle: Virtuse owns the user relationship and the information layer. Licensed CASP partners own the regulated financial layer. Revenue flows to Virtuse through affiliate commissions, subscription fees, and SaaS tool fees -- never through trading spreads or custody fees.

4. Revenue Model

Revenue Stream	Model	Est. Annual Revenue (Year 2)
Referral / affiliate commissions	CPA + % of trading fees	EUR 200,000 - 500,000
Subscription media / research	Monthly / quarterly fees	EUR 100,000 - 300,000
Non-custodial bot SaaS	Monthly subscription	EUR 50,000 - 150,000
Premium analytics dashboard	Tiered SaaS	EUR 50,000 - 100,000
White-label research	B2B licensing to family offices	EUR 50,000 - 200,000
TOTAL		EUR 450,000 - 1,250,000

Revenue Model Shift

The model shifts from **trading fees** (CASP model) to **media subscriptions + affiliate commissions + SaaS tools** (tech/media model). This eliminates regulatory burden while maintaining strong unit economics. DCA apps demonstrate the best capital efficiency in the Bitcoin space: Bitstack achieved 10x revenue growth with minimal incremental capital, and Relai reports a 4.6:1 CLV:CAC ratio with 85% retention.

5. Critical Legal Risks & Mitigation

Risk	Likelihood	Mitigation
NBS Slovakia declares Virtuse needs CASP license	Medium	Ensure NO custody, NO execution, NO personalised advice; maintain clear audit trail of service boundaries; legal opinion from Slovak financial regulator
"Advice" boundary gets tested	Medium	Never use client profiling questionnaires; never tailor recommendations to individual circumstances; keep all content uniform; legal review of all published content
Bot infrastructure deemed custodial	Low-Medium	Never hold private keys; never sign transactions; ensure user controls all API permissions; technical audit of bot architecture
Referral model deemed "placing" or "order transmission"	Low	User must independently navigate to CASP and place orders; no order data flows through Virtuse systems; clear Terms of Service defining Virtuse as information provider only
MiCA marketing rules (Article 53)	Medium	All crypto-asset promotions must be "fair, clear, not misleading"; risk warnings required; CASP partner handles compliance for their platform; Virtuse adds its own disclaimers

Recommended Legal Protections

1. Obtain a **formal legal opinion** from a Slovak law firm specialising in financial regulation confirming Virtuse's activities fall outside CASP scope.
2. Register with **Narodna banka Slovenska (NBS)** as an information service provider (voluntary notification, not licensing).
3. Maintain **annual compliance reviews** to ensure no feature drift into regulated territory.
4. Secure **professional indemnity insurance** covering media/content liability (EUR 1-2M coverage recommended).

6. Recommended Implementation Roadmap

Phase	Timeline	Actions	Deliverable
Phase 1: Foundation	Week 1-2	Audit current virtuse.com features against 10 MiCA services list; obtain legal opinion from Slovak financial law firm; review and strengthen Terms of Service disclaimers	Legal compliance audit report; updated ToS
Phase 2: Partnerships	Month 1	Launch referral partnership with Relai (Bitcoin-only, mission-aligned, MiCA-licensed) and 21bitcoin (Bitcoin-only, DACH focus); implement affiliate tracking; publish disclosure statements	2 active CASP referral partnerships; affiliate revenue flowing
Phase 3: Media Launch	Month 2-3	Launch Bitcoin Research Newsletter (free tier + premium paid tier); establish editorial calendar; hire Bitcoin-native analyst	Weekly newsletter; first paying subscribers
Phase 4: Tools	Month 3-6	Build non-custodial portfolio tracking (wallet connection, balance display, on-chain analytics); integrate with 3-5 wallet providers	Live portfolio tracker; wallet integrations
Phase 5: Automation	Month 6-12	Develop self-hosted DCA bot templates (open-source strategy library users run themselves); launch premium analytics dashboard; begin white-label research offering	Bot marketplace; analytics SaaS; B2B research clients

Bottom Line

Virtuse can build a substantial Bitcoin-only business on the **information layer**, **referral layer**, and **non-custodial tooling layer** -- all without MiCA licensing. The revenue model shifts from trading fees (CASP model) to media subscriptions + affiliate commissions + SaaS tools (tech/media model). The key is staying permanently out of custody, execution, and personalised advice.